

CALIMESA FIRE DEPARTMENT
POLICY MANUAL
VOLUME 2
Policy: 304.01 Liability Loss Control Program

01/2018

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Date of Orientation: _____

ACKNOWLEDGMENT OF RECEIPT OF THE
LIABILITY LOSS CONTROL PROGRAM (LLCP)

I understand it is my duty to become thoroughly familiar with and abide by the policies, procedures, and standards identified in the LLCP.

I received Calimesa Fire LLCP on ____ / ____ / ____ (date).

Name: _____

Print

Signature

File: Employee Personnel File

Form 403.12

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I. LIABILITY LOSS CONTROL PROGRAM POLICY

No function, condition, or activity at Calimesa Fire is so critical as to require or justify a compromise of safety.

We believe everyone benefits from safe and healthy facilities. We are committed to maintaining these conditions and in so doing taking whatever action is necessary to prevent injury to third parties and/or damage to their property.

To achieve this goal, the Calimesa Fire Department (the Organization) has adopted this Liability Loss Control Program (LLCP). The LLCP is everyone's responsibility as we work together to identify and eliminate conditions, practices, policies and procedures compromising safety and posing a threat to third parties (any person or organization capable of being a claimant against our organization).

To this end, each and every manager, supervisor and employee has the authority to take action to mitigate hazards and unsafe practices with regard to organizational facilities, equipment or sites.

It takes positive and genuine effort to assure safety. The alternative is wasted money and wasted time due to third-party liability claims.

Our expectations are everyone will:

1. Seek to integrate safety into all things.
2. Avoid taking short cuts.
3. Take time to assure the implementation of all liability loss control policies and procedures.
4. Maintain organizational buildings, facilities, and equipment in a safe condition.

Please join me in striving to achieve our ultimate goal of a loss-free organization.

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II. Responsibilities

1. The **Fire Chief** is responsible for overseeing the implementation of the LLCPP. Duties include, but are not limited to:
 - a. Ensuring all Fire Captains and/or Company Officers actively support the LLCPP.
 - b. Providing the funding necessary to maintain an effective and compliant liability loss control effort.
 - c. Providing safe buildings, facilities, and equipment.
 - d. Ensuring there is open communication between management, staff, and third parties on liability loss control issues.
2. **Fire Captains and/or Company Officers** have the responsibility of:
 - a. Maintaining safe buildings, facilities & equipment, standards & procedures, and adequate supervision to include (as much as possible) having an employee-who-supervises on premises when third parties are in or using organizational facilities.
 - b. Training their employees to perform their jobs properly and safely to safeguard third parties.
 - c. Ensuring third parties receive written and/or verbal instructions on the safe use and/or occupation of organizational facilities, and existing or potential existing hazardous conditions.
 - d. Teaching, demonstrating, observing, and enforcing compliance with established safety standards to safeguard third parties.
 - e. Ensuring safety for third parties to include:
 - i. Ascertaining all facilities and equipment are designed with safety in mind.
 - ii. Maintaining good housekeeping where third parties may be present.
 - iii. Determining there is proper repair and maintenance of all facilities and equipment to prevent safety problems.
 - f. Having bilingual employees or services available to assist non-English speaking third parties if such parties are provided services by the organization.
 - g. Complying with federal, state, and local laws regarding buildings, facilities, equipment and driving.
 - h. Communicating safety-related policies and procedures to third parties who are occupying or will occupy and/or otherwise use organizational property.
 - i. Enforcing rules fairly and uniformly.
 - j. Either eliminating or significantly mitigating those hazards posing a danger to third parties.
3. **Liability Loss Control Program (LLCP) Administrator (Fire Chief)** has the responsibility for the:
 - a. Implementation, maintenance, and update of the LLCPP.
 - b. Preservation of all Organization-wide liability loss control program activity documents in accordance with organizational record retention requirements.

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4. **Employees** have the responsibility of:
 - a. Reporting to management any hazards they identify posing a threat of loss to third parties.
 - b. Assisting third parties in preventing accidents.
 - c. Assisting in maintaining safe facilities.
5. **Press & Media Contact** has the responsibility of working with reporters, journalists and others from the press and media to provide them with truthful and reliable information regarding organizational events coming into the public view. See Working with the Press & Media (Some Suggestions) in the LLCP's Addendum B.

III. Compliance (Accountability)

Accountability means consequences (recognition, reward, correction, discipline) are given for meeting or not meeting management's expectations.

1. **Management**
 - a. Management is accountable for all activities noted under the subject of Responsibility for management staff.
 - b. As part of The Fire Chief, Fire Captains regular performance evaluations, they are evaluated on what they have done to ensure safe facilities for third parties. They are also evaluated on their positive or negative liability loss results and vehicle accidents.
2. **Department heads, managers & supervisors and employees**
 - a. **Recognition**
 - Organizational personnel, who make a significant contribution to the maintenance of safe facilities for third parties, as determined by their superiors, receive written acknowledgment maintained in their personnel files.
 - b. **Correction**
 - Managers and supervisor's correct safety violations in a manner considered appropriate by established organizational policies and procedures. Notwithstanding the above, the Organization reserves the right to correct in any fashion it deems appropriate, including the right to terminate immediately an employee for a safety violation.
 - c. **Drug and alcohol testing**
 - Prior to placement, all employees are required to take a drug test based upon the Organization's attorney-approved drug testing program. Once employees are hired they are subject to additional drug and also alcohol testing based upon reasonable suspicion.
 - Managers and supervisors are trained on how to administer the Organization's drug and alcohol testing program including how to identify reasonable suspicion for testing.

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3. Liability Loss Control Program (LLCP) Administrator is held accountable for the implementation, maintenance, and update of the LLCP the preservation of all related documentation.
4. Employees
 - a. Employees are accountable for all activities noted under the subject of Responsibility for employee staff.
 - b. As part of employee regular performance reviews, they are evaluated on their compliance with safe work practices and what they have done to prevent losses to third parties.
 - c. Employees who are unaware of correct liability loss control procedures are trained or retrained.
 - d. Employees who fail to follow safe work practices and/or procedures, who violate organizational rules or directives, or who fail to take action to prevent third party related hazards and losses are subject to disciplinary action, up to and including termination in accordance with the organization's personnel-related policies and procedures.
5. Third-parties (including the general public and contractors)
 - Third parties on organizational property are subject to corrective action if they should create a safety hazard for themselves and/or for others. Corrective action could include speaking to them about their behavior, requesting their departure from the premises, and/or calling local law enforcement to handle the situation.

IV. Communication

1. Two-Way Communication
 - Management recognizes open communication between management, staff, and third parties on liability loss control issues, is essential to establishing a setting fostering a positive loss prevention enterprise.
2. Calimesa Fire's System of Communication

Management has established a system of communication designed to facilitate a continuous flow of liability loss control information between all parties in a form readily understandable.

 - a. For organizational employees:
 - i. The Organization has safety meetings where liability loss control issues are freely and openly discussed by all present. Such meetings are held monthly and all employees are expected to attend and are encouraged to participate in discussion.
 - ii. From time to time, written liability loss control notifications are included with paychecks or are posted on organization bulletin boards.
 - iii. Other methods of communicating pertinent liability loss control information are used as they are identified.

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- b. For Third Parties:
Where third parties may be subjected to unsafe conditions, the Organization takes one or more of the following actions:
 - i. Posts signs warning them of the exposures.
 - ii. Provides written notification in the form of letters and/or procedures.
 - iii. Informs or warns third parties of hazards or actions needing to be taken to avoid getting hurt, such as the wearing of personal protective equipment, safe pathways to take, what to do in the event of an emergency, and who to contact if they need help.
- 3. Safety Suggestions and Hazard Reporting
 - a. All employees and third parties are encouraged to inform organizational management of any matter which they perceive to be a hazard, or a potential hazard. They are also encouraged to report suggestions for safety improvement.
 - b. This reporting can be done orally, but preferably in writing. The notification may be given directly to the supervisor, the LLCP Administrator or other management personnel.
 - c. If someone wishes to report anonymously, a hazard, safety suggestion, or other safety problem he or she may complete a Report Form, not filling in a name.
 - d. No one will be retaliated against for reporting hazards or potential hazards, or for making suggestions related to liability loss control.
 - e. Management reviews all suggestions and hazard reports.
 - f. If persons doing the reporting provide their names in regard to the notification, they are informed of what is being done - within 5 working days of receipt.

V. Hazard Identification & Evaluation

Inspection of facilities is the primary tool used to identify unsafe conditions and practices. While we encourage everyone to identify and correct hazards and poor safety practices on a continuous basis, certain situations require formal evaluation and documentation.

- 1. Liability Loss Control Inspections
 - a. Liability loss control inspections are conducted at least annually for office facilities.
 - b. Liability loss control inspections are conducted for field facilities at least quarterly.
 - c. Hazards found are corrected on the spot or recommendations are submitted for future corrections.
- 2. Additional Inspections
 - a. Playground and recreational facilities are inspected at least monthly.

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- b. Organizational vehicles receive pre-trip inspections prior to being driven and service/inspections based on the manufacturer's prescribed service/inspection schedule.
- 3. Third-Party Reports of Hazards
 - a. In the event a third party (such as a citizen or other visitor) identifies and reports a hazard, the Organization has a system in place for obtaining the report and following up with the person who submitted the information:
- 4. The third-party may either:
 - a. Verbally report the hazard to an employee who will complete a Hazard Report Form,
Or
 - b. Complete a Hazard Report Form themselves and submit it to an employee.

Once the hazard report is received, management provides a response to the person making the report within 30 days acknowledging receipt of the report and letting the person know what the organization is doing about the hazard. If the reporting individual wishes to be kept posted on what is being done, management will do so. Otherwise only the one-time acknowledgement and response is given.

The Hazard Report Form provides management with the documentation process to ensure the hazard is dealt with on a priority basis.

VI. Investigation

- 1. Investigation
 - All accidents resulting in injury, property damage, and/or vehicle damage to third parties, however slight, including near-hits, are investigated within seven working days of the initial report to determine the primary and contributing causes.
 - This information is documented and analyzed to assist in determining corrective actions to prevent similar accidents from occurring in the future.
- 2. Reporting
 - All facts, findings, and recommendations are documented on the Organization's Investigation Report Form. Management reviews investigation reports with a view towards determining adequacy of the investigation and sufficiency of corrective action.
- 3. Responsibility
 - The responsibility to see all facets of this investigation are performed and corrective actions are taken rests with the LLCP Administrator.

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VII. Correction of Hazards

- When a hazard exists it is corrected on a timely basis based on the severity of the hazard. If imminent danger exists to anyone, management and supervision remove people who are in harms way from the danger at once, and personnel who are provided with the necessary safeguards correct the hazard.

VIII. Training

1. Managers, supervisors and the LLCP Administrator:
 - a. Determine safety-training needs
 - b. Implement new training programs.
 - c. Evaluate the effectiveness of these programs.
2. Orientation - New Employees
 - a. The LLCP Administrator provides an initial orientation on third party liability loss control within the first two days new employees are on the job. All employees are provided with a copy of the organization's LLCP.
3. Initial On-The-Job Training
 - a. As part of initial on-the-job training, managers/supervisors train new employees in all aspects of what the organization (management, supervision and employees) do to prevent third party claims against the enterprise. Included in this training is the identification of hazards and the required liability loss control procedures to mitigate those hazards.
4. Specific Organization-Wide Training
 - a. Disaster Preparedness
 - i. All organizational personnel receive annual training on this subject. This training includes the Organization's disaster preparation structure and how the organization and its employees are supposed to react to specific emergencies, such as fire, earthquake, medical emergency, and bomb threat. This training includes how to protect the safety and health of employees and third parties who are on the premises.
 - b. Defensive Driver Training
 - i. All employees who may drive on organization business, whether in organization vehicles or their own personal vehicles, receive defensive driver training not less than every three years either via a formal course or online training. Industrial equipment operator training is given in accordance with specific government regulations for each piece of equipment.

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IX. Risk Transfer

Management ensures all contracts include transfer of risk protocols for the effective transfer of risk to the agencies and businesses with which the Organization does business. Management uses attorneys, SDRMA staff members, or other contract experts to review all contracts for this purpose.

X. Contractor Compliance with Federal, State and Local Regulations

All contracts include a statement requiring contractors and vendors to comply with all related Federal, State and Local regulations including those regulations pertaining to safety.

XI. Minimum Personal Vehicle Insurance Requirements

1. The City of Calimesa requires employees who drive their personal vehicles on organizational business to have the minimum amount of liability insurance as required by the State.
 - a. Employees must provide a copy of their current insurance policy or a copy of an official document showing proof they have at least this minimum coverage.

XII. Recordkeeping

All documents are maintained in accordance with the Organization's record retention policies.

1. Program Implementation
 - a. The LLCP Administrator is responsible for maintaining records on the implementation of the organization-wide LLCP and all organization-wide liability loss control activities.
 - b. Specific departments maintain their own records for those liability loss control activities they administer in accordance with the Organization's record retention policies.
2. Accident Investigations
 - a. The LLCP Administrator is responsible for maintaining records on all third-party liability investigations, including vehicle accidents, and the corrective actions taken to prevent recurrence. The enclosed LLCP's Administrator's Investigation Report form is used to document these investigations.
3. Workplace Inspections
 - a. The LLCP Administrator is responsible for maintaining records of all liability loss control facility inspections. The enclosed Liability Loss Control Program Inspection/Action Plan form is used to document these inspections.
4. Report Forms
 - a. The LLCP Administrator keeps all Report Forms (copy enclosed).

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5. Acknowledgment of Receipt - Liability Loss Control Program
 - a. Upon receiving the initial LLCP or a major update of the LLCP during training, employees sign the Acknowledgment of Receipt of the Calimesa Fire Department's Liability Loss Control Program Form (enclosure). The LLCP Administrator maintains these forms.
6. Employee Training
 - a. Liability Loss Control Program Training is documented on either the New Employee Liability Loss Control Program Orientation Form (enclosure) or the Employee Safety Training & Meeting Report form (enclosure) and also on the Record of Training form (enclosure).
 - b. Depending upon the nature of other training, either the Injury & Illness Prevention (IIPP) Administrator or the LLCP Administrator is responsible for maintaining records of other organization-wide employee safety-related training.
7. Department Safety Meetings – Third Party Liability
 - a. Such meetings are documented on the Employee Safety Training & Meeting Report form (enclosure). Such forms are maintained within each department.
8. Communication
 - a. The LLCP Administrator maintains records of all communication documents relating to organization-wide liability loss control program and activities.
 - b. Individual departments or functions maintain records of all communication documents relating to their specific liability loss control program and activities.

XIII. Enclosures (in alphabetical order)

1. Acknowledgment of Receipt of the Calimesa Fire Department's Liability Loss Control Program (LLCP) Form
2. Employee Safety Training and Meeting Report Form
3. Liability Loss Control Program Inspection/Action Plan Form
4. LLCP Administrator's Investigation Report Form
5. New Employee Liability Loss Control Program Orientation Form
6. Record of Training Form
7. Report Form

Each blank form is a separate document.

The original may be found at the end of this document (after Addendum B)

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XIV. ADDENDUM A - ADDITIONAL SUBJECTS

Americans with Disabilities (ADA)

The Organization complies with the Americans with Disabilities Act (ADA) whereby reasonable accommodation is made available wherever possible. In this regard, managers and supervisors are trained on how to comply with ADA requirements.

Employees who are involved in these activities are adequately trained on how to apply these standards, and such training is documented.

Notification of Police, Fire and Paramedic Departments/Agencies

The Organization notifies police, fire, and paramedic departments or agencies when streets or roads are going to be obstructed or closed.

Driver and Vehicle Safety

The following policies and procedures apply to all employees who drive Organization vehicles and/or their personal vehicles on organizational business.

1. To maintain an ongoing effort to prevent vehicle accidents, the Organization has the following policies, procedures, programs, and activities:
 - a. Documented driver qualifications are included in the job descriptions for all employees who drive on organizational business.
 - b. All drivers are required to have the appropriate valid driver's license for each type of vehicle they drive.
 - c. Prior to an employee driving on organizational business, management obtains the Department of Motor Vehicles (DMV) driving record for the employee to ensure they have a good driving record.
 - d. Those employees who have Class A and/or B licenses come under the Organization's DOT Drug and Alcohol Testing Program requirements.
 - e. All employees who drive on organizational business are required to be part of the DMV's Pull-Notice Program whereby management is kept current with all changes to each employee's driving records.
 - i. Refusal to participate in this program disqualifies the employee from driving for the Organization.
 - ii. Depending upon the driving requirements in the employee's job description, such refusal could require termination of employment.
 - f. The Organization uses DMV accident and traffic violation standards as the basis for removing employees from driving. Early detection (via the DMV Pull-Notice Program and/or via complaints) and early correction of driving problems assist the employee and the Organization in reducing the chance of incidents and accidents, and retain valuable staff members.

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- g. Management recognizes employees who have excellent driving records.
- h. Anyone who drives on organizational business is trained on defensive driving on an ongoing basis as part of regular safety meetings. Additional training may be given in formal courses or via web-based training programs.
- i. Seat belts are required to be used by all drivers and their passengers whenever driving on organizational business.
- j. The Organization requires all vehicles to be locked when not in use.
- k. All organizational vehicles receive a pre-driving safety inspection documented on a checklist (see enclosed sample) and maintained in organizational files on a rolling one-year basis to be able to demonstrate such inspections are being diligently completed. Pre-driving safety inspections for vehicles coming under the DOT regulations comply with DMV standards.
- l. Employees are required to report safety-related vehicle defects to their supervisors as soon as such problems are identified.
 - i. Supervisors take action to immediately fix the identified problem or take the vehicle out of service until the repair is made.
 - ii. If the problem is not a safety issue, the vehicle might be permitted to be operated until it can be brought in for repair.
- m. All vehicles are on a documented preventive maintenance program designed to meet or exceed manufacturer-suggested recommendations for parts replacement and service intervals. All records are maintained for the life of the vehicle.
- n. When an organizational vehicle is involved in an incident in which the maintenance and/or inspections records could be used in the investigation and/or resolution of a claim, all maintenance and inspection records are secured for future review.
 - i. The LLCP Administrator directs this process.
 - ii. All records for the involved vehicle prior to the incident date are secured either by:
 - 1. Copying all inspection, service, maintenance and repair documents and providing them to the LLCP Administrator for claims management or
 - 2. All such records are labeled Do Not Destroy without approval of the Liability Loss Control Program Administrator.
 - iii. Mechanics who maintain organizational vehicles are trained on the specific vehicles on which they work.
 - iv. Internal mechanics receive both documented initial training and ongoing refresher and update training to maintain their competence.
 - v. Management works with vendors (dealers and vehicle service shops) to ensure their mechanics have the proper training to work on organizational vehicles to maintain their competence. ASE certified is one standard management looks at to ascertain mechanic competence.

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Traffic Control

Whenever employees work in or around traffic, they comply with the most current edition of the California Manual on Uniform Traffic Control Devices (MUTCD) as published by the California Department of Transportation.

All affected employees are provided both documented initial and annual refresher training on the requirements of the Manual.

Sufficient equipment, maintained in good condition, is available for use by the involved employees.

Fire Service

Management complies with all State-required policies, procedures, standards, hiring practices, initial and ongoing training, and evaluation processes. All such activities are documented and maintained in accordance with the Organization's and the State's record retention policies.

1. Fire Protection Apparatus
 - a. Standards and procedures for the maintenance of all fire protection apparatus.
2. Certification of Personnel
 - a. Standards and procedures for the certification of all department personnel.
3. Committee to Review Equipment
 - a. Established committee that specializes in reviewing the type of safety equipment and firefighting equipment used by the department.

Emergency Response

Policies and procedures regarding what employees and/or volunteers should and should not do when responding to an emergency in Organizational and/or personal vehicles.

2. Driving and Vehicle Safety

- a. Initial training and annual refresher training on defensive driving for new employees and volunteers who drive organizational vehicles or personal vehicles on organizational business.
- b. Annual behind-the-wheel evaluation of driving performance for employees and volunteers.
- c. Initial training and ongoing refresher training on Code 3 response for new employees

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and volunteers who drive organizational vehicles or personal vehicles in response to emergencies.

Employment Practices Liability (EPL)

1. The Organization seeks to avoid EPL claims by having the following employee-oriented policies, procedures and activities in place:
 - a. A written anti-harassment policy meeting the requirements of the most current legislation.
 - b. A written anti-discrimination policy relating to preventing discrimination associated with such subjects as age, gender, race, religion, sexual orientation, disability, and nationality, and meeting the requirements of the most current legislation.
 - c. A written progressive disciplinary procedure establishing fair and objective corrective action standards.
 - d. The obtaining of professional counsel by employees-who- supervise prior to taking disciplinary action regarding an employee.
 - e. A written procedure including an open door policy, ensuring all employees:
 - i. Have the option to report an EPL-related problem in confidence.
 - ii. Reports will remain confidential unless they agree otherwise.
 - iii. Can reasonably expect a satisfactory resolution from management.
 - f. Ongoing seeking to provide reasonable accommodation for employees in accordance with the ADA standards.
 - g. A system assuring the maintenance of reported EPL problems in confidence, keeping confidential records in a locked filing cabinet or safe, and controlling access to this information.
2. Management provides both initial and ongoing training in accordance with governmental requirements and organizational personnel policies and procedures on all EPL subjects.

Other Liability-Related Subjects

Management is continuously seeking to identify other liability risks needing to be included in the LLCP, and requests assistance from everyone who has additional ideas.

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XV. ADDENDUM B - WORKING WITH THE PRESS & MEDIA

Whether dealing with a severe employee injury, a chemical release into the ground or air, a vehicle accident, a third-party liability incident, a fire, or other problem coming to the public's attention, organizational management sometimes has to work with reporters, journalists, and other people from the news media and press.

The following are some tips from a variety of sources to assist management in its efforts to be forthright, yet careful, when communicating with newsgathering men and women. There is duplication since you will see where the authors see eye-to-eye on this subject and where you will want to focus your attention. There are also different takes on the subject and you will want to fit these ideas into your own style to make them work.

Rules of Engagement

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1. It's not the question – it's the answer. You never see the question on TV.
2. It's not the reporter – it's the audience you are speaking to.
3. Use and be used. They are using you so you get to use them to get your message out.
4. They can't use what you don't say.
5. Think before you speak – there is no dead air on TV.
6. Never lie.
7. Never say No Comment.
8. Say I don't know.
9. Pass them on (to other sources).
10. Be a good source.

Rules for Dealing with Reporters

Patrick Fox, President of The Saint Consulting Group, Copyright © Saint Consulting

1. Never lie.
2. Answer the calls of the press.
3. Stay on the record.
4. Always prepare for an interview.
5. Always have an agenda.
6. Bridge to your agenda
7. Think before your speak.
8. Keep your cool.
9. Don't accept their definitions.

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10. Be ambiguous only when you want to be.
11. Keep answers short when under fire.
12. Avoid jargon.

Dealing with the Press

Dan Hamilton, Copyright © 1992 Planning Commissions Journal

1. Return phone calls.
2. Be prepared.
3. Do not duck controversy.
4. Do not try to dictate a story's content or tone.
5. Cultivate a good source relationship with reporters who *get it right*.
6. Alert the media to favorable stories.
7. When things go wrong:
8. Promptly ask for the correction of factual inaccuracies.
 - a. Ask for an appointment with the reporter.
 - b. Ask for an appointment with the editor/news director.
 - c. Alert the press to good stories.
 - d. Write letters to the editor rebutting factual errors or an unfavorable slant. Do so without adopting a defensive or complaining tone.

Dealing with the Press

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1. Be well briefed.
2. Anticipate questions.
3. Get the answers down very carefully.
4. Rehearse.
5. List the key points.
6. Remain politely aloof and uninvolved, without fostering animosity.
7. Write out a position beforehand.
8. Minimize your comments, if possible.
9. Do not go off the record. The press does not appreciate this kind of interview because they cannot use the information.
10. Avoid no comment. Instead, smile and say something like: I'd like to help you, but you know it would be a violation of professional ethics (or client confidentiality) for me to discuss this subject with you. Some things are beyond your control.
11. Stay calm and try to be as rational and thoughtful as you can.

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News Reporters: Friends or Foes?

Taken from a Presentation on this Subject by Tina Noel, Media & Public Relations Consultant, Copyright © Tina Noel

1. Most news reporters are just looking for the truth.
2. Few are out to get you.
3. They shape public perception.
4. All are on deadline.
5. They need accurate, reliable sources to provide information in a hurry.
6. News reporters are not your friends and they are not your foes. They are just out to *get the news*.
7. Know the audience the reporter serves. Deliver a message serving this audience.
8. If possible, don't consent to an on-the-spot interview. Take the time to prepare. Determine the reporter's deadline and meet it.
9. Listen: Make sure you know what the question is before you answer.
10. If the reporter does not understand his or her subject matter, take the time to educate him or her.
11. Nothing is *off the record*.
12. If a video camera is in the room, assume the red light is always on.
13. Never say "no comment". It makes you sound guilty.
14. Use facts and statistics. Used appropriately, facts and statistics strengthen your message and make you look even smarter than you are. (On the other hand), make them easily understandable.
15. Avoid jargon.
16. Practice. Practice. Practice.
17. Stay on message. Don't get off track and lose your opportunity to get your message across.
18. Be direct:
 - a. Sometimes you cannot answer.
 - b. Sometimes you do not know the answer.
 - c. It is okay to say you cannot answer or do not know. Do not weasel around it. If you can find the answer, offer to do so and do it.
19. Tell the truth. Lies are not only wrong, they are too easy to disprove and you will not recover from being found out.
20. Do not speculate or lose your temper. You will end up looking silly.
21. Basic steps for all interviews:
 - a. Determine the interview topic.
 - b. Define your message.
 - c. Work within your organization to determine core messages defining what you offer the public.
 - d. Develop three bullet points/talking points succinctly expressing those core messages.
 - e. Practice. Practice. Practice.

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f. Stay on message!

22. Interview To-Do List

- a. Upon receiving a phone call from a reporter:
 - i. Politely say you are in the middle of something and must call back.
 - ii. Ask for the reporter's deadline; agree to beat it, keep your word.
 - iii. Ask for the reporter's name and contact information.
 - iv. Ask: What's the interview topic?
 - v. Ask: How long will the interview last?
 - vi. Ask: Where/how will the interview take place?
 1. On the phone?
 2. In person?
 3. Live radio/TV?
 4. Taped broadcast?
- b. Ask: Who else will be interviewed?
- c. If possible, determine the reporter's audience demographics:
 - i. Size
 - ii. Age
 - iii. Gender
 - iv. General socio-economic issues
 - v. Sympathetic to your issue?
 - vi. Against your issue?
 - vii. Recent events.
- d. If possible, determine if the reporter has an opinion about the story. Develop a plan to get your message across regardless of the reporter's stance.
- e. Develop ten questions you think will be asked.
 - i. Include questions you don't want to answer.
 - ii. Develop answers fitting your message.
 1. 30-second sound bites.
 2. Be succinct but quotable.
- f. Get a friend to interview you to practice before you call the reporter back.
 - i. Adjust answers, if necessary.
 - ii. If doing a phone interview, keep answers and message points at hand.
 - iii. Practice answering off-message questions by bridging back to your message.
- g. In case you do not know when you are in Jargon Land, the following statements are considered jargon, and under each statement is what the statement really means:
 - i. Jargon: We utilize industry Best Practices to achieve specific strategic marketing outcomes.
 1. Means: We use what works to get the job done.
 - ii. Jargon: Our FTE is working on the RFP with EPA before leaving for the EOC.
 1. Means: We are asking for help from the Environmental Protection Agency.

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iii. Jargon: IDEM and DNR have entered into an MOU optimizing implementation of the White River RAP.

1. Means: State agencies are teaming up to restore the river as soon as possible.

23. Asked and Answered

- a. Be compassionate.
- b. Be clear.
- c. Be concise.
- d. Stay on message.
- e. Make each answer count.
- f. Use positive words whenever possible.
 - i. "Challenge" not "problem"
 - ii. "Loss" not "death"
- g. Be courteous and polite.
- h. Answer the questions but do not elaborate beyond message points.
- i. Do not speak for anyone but yourself.
- j. Positively represent your organization.
- k. Do not take the bait to criticize.
- l. Do not comment on reports if you have not read them.
- m. Do not fill in silence.
- n. If you make a mistake, correct it as soon as possible:
 - i. Correct yourself during the interview if possible.
 - ii. If the interview has ended, call the reporter to make the correction before his or her deadline.
 - iii. You will be forgiven for the mistake but only if you save the reporter from repeating it.
- o. Difficult Questions:
 - i. Do not take it personally; it is not about you.
 - ii. Stay on message
 - iii. If it gets hostile, politely end the interview.
- p. Bridging
 - i. Bridging is a public relations jargon word meaning getting out of a tough question without being a weasel.
- q. Good bridging phrases include:
 - i. Let's back up a bit. I think we have confused each other.
 - ii. Let me tell you how that works.
 - iii. I do not know about that, but what I do know is...?
 - iv. Historically, that may have been the case, but today, we are focused on...
- r. Bad bridging phrases include:
 - i. That's a great question...Comment: Reporters think ALL their questions are great. This bridge is over used and ineffective.

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- ii. I am not going to answer that. All I am allowed to say is...Comment:
Never let them see you sweat.

24. The Different Media

- a. Newspapers, trade press and web-based outlets:
 - i. Usually have at least a few hours to get the story.
 - ii. Can be in-depth.
 - iii. Information lasts forever.
- b. Radio and TV:
 - i. Short deadlines; need comments now
 - ii. Rarely more than a few seconds.
 - iii. Audio can be captured and posted online, but often is lost once aired.
- c. Radio Talk Shows – Know beforehand:
 - i. The host's agenda.
 - ii. Whether the show is live or taped.
 - iii. Who else is going to be on the show
 - iv. Are there going to be call-in phone calls?
- d. Television:
 - i. TV is just radio if there are no compelling visuals.
 - 1. Offer shooters options (graphic clips) for the background of your interview if you have them.
 - ii. Your appearance matters.
 - 1. Check your hair and teeth before going on.
 - iii. Body language speaks loudly.
 - 1. Smile only if appropriate.
 - 2. Be serious if the situation warrants it.
 - 3. Maintain eye contact with the interviewer.
 - 4. Sit up straight.

25. Misquotes and Errors

- a. Everyone makes mistakes from time to time. Generally, errors and misquotes are misunderstandings. This is why you should have a clear message and stick to it.
- b. If you are misquoted so badly or the story is reported so erroneously distorting the truth, call the reporter.
 - 1. Be sure you are right before you call.
 - 2. Have your message points down and stick to them.
 - 3. Calm down before you call.
 - 4. Politely and professionally discuss the matter.
 - 5. Ask for a follow-up story to correct the error.
 - 6. Be prepared to settle for a clarification or correction.
 - 7. Call the editor if the reporter does not agree with you. Repeat steps 1 through 6.

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Calimesa Fire Department

LLCP ADMINISTRATOR'S INVESTIGATION REPORT (form 403.10)

(Liability Loss Control Program – Third Parties)

Time is of the essence. Please be as complete and concise as possible. If you need additional space, please use additional sheets of paper and note the paragraph number and letter. The information you provide should help prevent a similar liability loss in the future and potentially reduce the severity of this loss.

1. WHO:

1a. Name(s) and address(es) of Injured Involved Person(s):

1b. Name(s) of any involved employee(s):

1c. Name(s) and addresses of Witness(es):

2. WHEN:

2a. Date of Incident: _____ / _____ / _____

2b. Time of Incident: _____ AM _____ PM

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2c. Work Start Time: _____ AM _____ PM (For any involved employees)
2d. Date Reported to You: _____ / _____ / _____ 2e. Time Reported: _____ AM _____ PM
3. WHERE: (Describe Where the Incident Happened):
4. WHAT: 4a. Describe the loss such as injury or illness (cut, strain, fracture, skin rash) or property or vehicle damage.
4b. If an injury or illness, what part of the body was affected, such as back, left wrist, right eye, lungs:
4c. What was happening at the time of the incident? (Be specific by identifying tools, equipment or materials being used)

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7a. What is the LOSS SEVERITY POTENTIAL? (Circle your answer):

Major

Serious

Minor

7b. What is the PROBABLE RECURRENCE RATE? (Circle your answer):

Frequent

Occasional

Rare

8. CORRECTIVE ACTION: What actions have or will be taken to prevent a recurrence?

Expected Completion Date

Actual Completion Date

a.

b.

c.

9a. Investigator's Name (Print): _____

9b. Title: _____

9c. Investigator's Signature: _____

9d. Date: _____

10. File a copy in the LLCP Administrator's files and provide to the involved Organization attorney if appropriate.

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